3157

Executive Order.

Paragraphs 4, 17, 18, 39, 40, 41, 41½, 42, 43, 43½, 44, 465, 466, 467, 472, 473, 506, 506½, and 507 of the Consular Regulations of 1896 are hereby amended to read as follows:

Repealed
1939 C.R. 87

4. *Other definitions.* The term "consul" whenever the sense so requires, denotes any principal consular officer, or, if necessary, any consular officer. (Paragraph 14). "Vice-consular officers" denote vice-consuls; "substitute consular officers" denote vice-consuls when in responsible charge of a consulate; and "subordinate consular officers" denote vice-consuls not in charge of consulates, interpreters, student interpreters, and consular agents. (R. S. Section 1674, as amended by Section 6 of the Act of February 5, 1915; 38 Stat. L., 806).

17. *Definition.* Vice-consuls are consular officers subordinate to consuls-general or consuls (principal consular officers) and exercise and perform consular duties within the limits of their consulates at the same or at different points and places from those at which the principals are located, except that when vice-consuls take charge of consulates-general or consulates when the principal officers shall be temporarily absent or relieved from duty they shall be deemed to denote consular officers who shall be substituted, temporarily, to fill the places of the consuls-general or consuls. (R. S. Section 1674, as amended by Section 6 of the Act of February 5, 1915; 38 Stat. L., 806; 33 Federal Reporter, 167.)

Whenever in his judgment, the good of the service requires it, consuls may be designated by the President without thereby changing their classification to act for a period not to exceed one year as Vice-consuls and when so acting they shall not be deemed to have vacated their offices as consuls. (Act of April 5, 1906; 34 Stat. L., 100.)

18. *Duties.* Vice-consuls perform such duties of the consular offices to which they may be assigned as are described in the Consular Regulations and Laws of the United States, and which they may be directed to perform by the principal officer under whom they serve. When the principal officer is absent the vice-consul, or if there be more than one, the one whose commission bears the earliest date, in the absence of contrary instructions from the Department, will assume full charge of the office under his bond.

39. *Nomination and appointment.* There are two grades of vice-consuls, which are designated as vice-consuls *de carrière* and vice-consuls.

40. *Vice-consuls de carrière.* These officers are classified as follows:

Class I.	Salary	$3,000.
Class II.	Salary	2,750.
Class III.	Salary	2,500.

They are appointed (a) by promotion upon the basis of ability and efficiency as shown in the service of consular assistants and student interpreters in the consular service who shall have been appointed to such offices upon examination; (b) by new appointments of candidates who have passed a satisfactory examination for appointment as consul or vice-consul as provided in the Executive Order of June 27, 1906.

Consuls - Vice Consuls

Vice-consuls *de carrière* are appointed to classes and not to particular posts. They receive certificates of appointment as "Vice Consul of the United States of America with the designation of Vice Consul *de carrière* of Class ...." and so qualify by executing oaths of office and bonds. Upon each new assignment a certificate of assignment issues as "Vice Consul *de carrière* of the United States of America" which is forwarded to the mission in the foreign country to which the officer has been assigned, and thence with the exequatur, when issued, to the vice-consul *de carrière* through the principal officer under whom he serves.

40. *Promotion of vice-consuls.* Vice-consuls *de carrière* are eligible to promotion on the basis of ability and efficiency as shown in the service from Class III to Class II and thence to Class I. Thereafter the members of Class I shall be eligible to promotion on the same basis to the grade of Consul of Class 6 without further examination. No promotions shall be made except for efficiency as shown by the work that the officer has accomplished, the ability, promptness and diligence displayed by him in the performance of all his official duties, and his good conduct and bearing as an officer. Seniority shall control in promotions only in cases where the merits of officers are substantially equal.

An exception to the foregoing is made in the case of student interpreters who upon qualifying for promotion shall be made Vice-consuls of Class III, and thereafter upon passing their second promotion examination shall be promoted to Vice-consul of Class I, after which they will be eligible to promotion to the grade of Consul of Class 6.

41. *Vice-consuls not of career.* Vice-consuls other than those *de carrière* are selected by the Secretary of State. Not infrequently persons nominated by principal consular officers are selected for appointment. Vice-consuls not *de carrière* receive no salary as such, except for the time during which they may be in responsible charge of the consular office in the absence of the principal, when they receive compensation at the rate of one-half the salary of the principal. The majority of vice-consuls not *de carrière* derive their compensation from the salaries paid them for their services as clerks or other employees of consular offices. They are not eligible to promotion without undergoing the usual examination. They are appointed to particular posts, and receive certificates of appointment to those posts, which are forwarded to them through the appropriate diplomatic missions with exequaturs or such other recognition as the foreign governments may grant.

41½. *Nomination by principal officers.* Consuls-general and consuls recommending appointments of vice-consuls must in all cases submit evidence of the capacity, character, and fitness of the nominees, and give their residence and nationality. A nomination failing to give these particulars will not be considered. Minors will not be appointed. Persons nominated must speak and read the English language, and be citizens of the United States. Nominations must be made in despatches addressed to the Secretary of State and transmitted for approval through the supervising consulate-general, and should be accompanied by the candidate's application for appointment. (Form 205a).

42. *Vice-consuls must be citizens.* Every vice-consul must be an American citizen. (Act of March 4, 1919, 40 Stat. L., 1333).

43. *Bond.* Every vice-consul shall before entering upon the duties of his office, give a bond with such sureties, who shall be permanent residents of the United States, as shall be approved by the Secretary of State in a sum of not less than $2,000 nor more than $10,000 conditioned for the true and faithful discharge of the duties of his office according to law, and for truly accounting for all monies, goods and effects which may come into his possession by virtue of his office. (R. S. Section 1695, as amended by Act of February 5, 1915; 38 Stat. L., 806; R. S. Section 1698, as amended by Act of December 21, 1898; 30 Stat. L., 771; 26 Federal Reporter, 607.)

43½. *Vice-consuls not to transact business.* No vice-consul *de carrière*, and no vice-consul receiving a salary in excess of one thousand dollars a year shall, while he holds office, be interested in or transact any business as a merchant, factor, broker, or other trader, or as a clerk or other agent for any such person to, from, or within the port, place, or limits of his jurisdiction, directly or indirectly, either in his own name or in the name or through the agency of any other person; nor shall he practice as a lawyer for compensation or be interested in the fees or compensation of any lawyer; and he shall in his official bond stipulate as a condition thereof not to violate this prohibition. (R. S. Sections 1699 and 1700, as amended by the Act of April 5, 1906; 34 Stat. L., 101).

44. *Removal of vice-consuls.* Consuls-general and consuls have no power to remove vice-consuls assigned to their offices or to service under their supervision. In cases of serious insubordination, threatened destruction or loss of Government property, or conduct likely to injure the reputation of the consulate, the principal consular officer may suspend the vice-consul responsible therefor from office pending a review of the facts by the Secretary of State. The Secretary of State will invariably be notified of a suspension by telegraph and a report of the facts with a signed statement of the vice-consul in his own behalf, will be forwarded by the most expeditious method. While under suspension a vice-consul may not perform any official act.

465. *Absence must be reported.* All absences of consular officers from their posts exceeding forty-eight hours, whether by leave or otherwise, must be reported to the Secretary of State and will be regarded as a part of the sixty days leave during which a consular officer may be absent in one year without loss of salary (12 op. A. G. 410).

466. *Absence without leave.* No consular officer may be absent from his post or the performance of his duties for more than ten days at any one time without obtaining permission from the President through the Secretary of State (R. S. Section 1741; 18 Stat. L., 77; 14 Op. A. G., 534). This provision is intended to relieve those cases of sudden emergency in which there is not sufficient time for communicating with the Secretary of State without endangering the health or affairs of the officer. Reliance is placed upon the fidelity and honor of officers in the use of this permission in such manner as not to abuse the privilege granted.

467. *Conditions under which granted.* In the discretion of the President, acting through the Secretary of State, local or simple leave of absence with salary for not more than thirty days in any one year may be granted to consular officers and consular assistants. In case of illness of the officer or of a member of his family a local or simple leave of absence with pay may be extended to a total of sixty days but no longer.

Leave of absence with permission to visit the United States for not to exceed sixty days in any one calendar year may be granted with salary not oftener than once in two years except (1) in the case of consular officers in remote places (Asia, Australia and South Africa) who may be granted leave in two successive years; and (2) also in cases where the health of officers require that they should be absent from their posts of duty, when leave may be granted for two succeeding years. Whenever leave of absence is claimed to be necessary on account of illness it is desirable that a certificate of the physician in attendance be forwarded to the Secretary of State. (R. S. Sections 1740, 1742.)

Leave of absence with permission to visit the United States is granted exclusive of the time actually and necessarily occupied in transit by the most direct route from the officer's post abroad to his residence in the United States and return to his post and salary for said transit period will be paid in addition to the salary for the duration of the leave of absence (R. S. Sec. 1742; 14 Comp. Dec. 61). Salary will not be paid for more than one transit period in any one year (10 Comp. Dec. 465; 11 Comp. Dec. 123) except that when all or part of a transit period occurs in a calendar year other than that in which the leave of absence was taken it will not impair the right of the consular officer to another transit period during that calendar year if leave should be granted (14 Comp. Dec. 461.)

Leave of absence will not be granted to any officer within six months after his arrival at a new post of duty, except in case of illness.

If consistent with the public interest leave of absence may, for good reason, be granted for a longer time that that stipulated in the foregoing, but without compensation (R. S. Section 1742).

472. *Vice-consuls.* The regulations in regard to leave of absence for consular officers (Paragraph 467) are applicable to vice-consuls *de carrière* and vice-consuls not *de carrière*. Vice-consuls *de carrière* should apply to the Secretary of State for leave and their applications should be transmitted through and have the approval of the principal officer under whom they may be serving. In cases of emergency the principal officer may grant leave to vice-consuls *de carrière* under his jurisdiction, reporting the fact to the Secretary of State for approval.

Vice-consuls not *de carrière* should make their application for leave of absence to the principal officer when he is at his post and in charge of the office, and he may grant leave of absence to the vice-consul reporting the fact to the Secretary of State.

When vice-consuls of any grade are in charge of an office they should apply to the Secretary of State for leave in the same manner as if they were the principal and if for any reason, due to the non-arrival of another officer to relieve a vice-consul, it should become necessary to leave the office temporarily in charge of someone not regularly appointed, the vice-consul should obtain the approval of the Secretary of State, and the name and authenticated signature of the person left in charge must be forwarded immediately to the Secretary of State.

Leaves of absence of vice-consuls not *de carrière*, who receive compensation as clerks (Paragraph 41) shall be subject to the limitations governing leaves of absence for clerks set forth in Paragraph 473.

473. *Leave of absence of clerks.* A clerk in a consular office may, in the discretion of the principal officer, if the work of the office permits, be granted leave with pay to the extent and in the manner provided for consular officers (Paragraph 467). In granting leave to clerks and subordinate employees principal officers will bear in mind that leave must not be granted when the absence of the clerk will interfere with the transaction of the business of the office and that the absences of members of the staff should be so arranged that the work can be carried on without additional assistance. In cases where it may be necessary to employ temporary clerical assistance during the absence of the regular clerk, the compensation of the temporary employee will be paid by the consul from his regular clerk hire allotment and a corresponding amount deducted from the compensation of the regular clerk; but consular officers in charge of posts will endeavor, so far as may be consistent with proper transaction of the business of their offices, to grant all or part of the leave specified, and to do so with full pay if at all possible, in order that clerks and employees may have reasonable opportunity for rest and recreation.

506. *Compensation of vice-consuls.* The salaries of vice-consuls *de carrière* are set forth in Paragraph 39, and are paid in the same manner as salaries of consuls-general and consuls. Vice-consuls not *de carrière* receive no salary as such, but in the majority of cases they are also clerks and other employees of consular offices and receive compensation for their services in those capacities and not as vice-consuls.

Vice-consuls of both grades are entitled to salary when travelling to and from their posts and when travelling under the orders of the Secretary of State, to begin at a date not prior to that of taking the oath of office; salary while on leave of absence subject to the law governing leaves of absence (Paragraph 472); and to actual and necessary travelling and subsistence for the officers and their families, and the expense of transportation of effects, under the regulations prescribed by the Secretary of State, when travelling to and from their posts, or under the orders of the Secretary of State, but not including any expense incurred in connection with leaves of absence.

506½. *Additional compensation for vice-consuls.* For such time as any vice-consul, whether *de carrière* or paid as a clerk, shall be lawfully authorized to assume responsible charge of a consulate-general or consulate during the absence of the principal officer at the post, he shall be entitled to receive in addition to his regular salary or compensation as a subordinate consular officer or employee, compensation equal to the difference between said salary or compensation and fifty per centum of the salary provided by law for the principal consular officer at the said post. (23 Comp. Dec., 77; 75 MS. Comp. Dec., 682; 11 Stat. L., 56, Act of August 18, 1856, as amended by the Act of March 2, 1909 and February 5, 1915; 13 Comp. Dec., 247). In case no principal officer shall at the time be assigned to the post, the additional compensation shall be computed on the basis of the salary of the principal officer last assigned to the post. If during the period the vice-consul is in charge a change is made in the principal officers assigned to the post involving a change in salaries, a corresponding change is thereby effected in the salary of the vice-consul from the date of the assignment of the new principal officer. In all cases a notice of said new assignment of a principal officer will be immediately despatched to

the vice-consul by the Department of State. (23 Comp. Dec., 641). (G. I. 387, March 1, 1915.) An honorary vice-consul who holds no subordinate position and is temporarily in charge of the consulate is entitled only to compensation equal to fifty per centum of the salary of the principal officer assigned to the post (22 Comp. Dec., 145). The foregoing rules apply to the salary of the vice-consul in charge after the death of the principal officer (24 Comp. Dec., 168).

The foregoing rules are obviously inapplicable when the salary of the vice-consul as such or as a subordinate officer or employee exceeds fifty per centum of the salary of the principal officer assigned to the consulate (23 Comp. Dec., 644).

507. *Drafts of vice-consuls.* When a vice-consul assumes charge of a consulate, he should promptly notify the Secretary of State in order that any drafts drawn by him for salary or expenses may be duly paid. No drafts of a vice-consul when in charge of a consulate will be paid unless the bond prescribed by Paragraph 43 shall have been approved and filed with the Secretary of the Treasury.

Paragraphs 475, 508, 509 and 512 are cancelled.

WOODROW WILSON

THE WHITE HOUSE,
August 26, 1919.

[No. 3157.]